



CITY OF MANCHESTER

Planning and Community Development

Planning and Zoning
Building Regulation
Code Enforcement
Community Improvement Program

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**DRAFT OF THE CITY OF MANCHESTER ZONING BOARD OF ADJUSTMENT PUBLIC HEARING AND
LIMITED BUSINESS MEETING MINUTES
Thursday, August 13, 2026 – 6:00 PM
City Hall, Third Floor – Aldermanic Chambers**

I. CALL TO ORDER

At 6:00 pm the Chairman called the meeting to order and introduced the Zoning Board Members and City Staff.

Present Board Members: Chairman Bob Breault, Vice Chairman Craig St. Pierre, Kathryn Beleski, Matthew Carnevale, Jr., Nick Taylor, and Scott Godzyk

Staff Present: Michael Landry

Vice Chairman Craig St. Pierre swore in those present to give public testimony.

Michael Landry announced that the first three cases, ZBA2026-058 for property located at 2188 Candia Rd., ZBA2026-064 for property located at 2266 Candia Rd. and ZBA2026-063 for property located at 26 Titus Ave., will not be heard tonight. They will be heard at the next hearing on September 10, 2026, at 6:00 pm here in the Aldermanic Chambers.

II. PUBLIC HEARING:

A. Current Cases

1) ZBA2026-058, 2188 Candia Road

BC-2 Zoning District, Ward 6

Eli Leino, Esq. (Agent) proposes to create an accessory outdoor vehicle storage use to be used by the auto repair use located next door at 2266 Candia Rd. in the Lake Massabesic Protection Overlay District, create six new parking spaces 0' from the lot line that can only be accessed from 2266 Candia Rd., resulting in impervious lot coverage of 64.9% where 60% is allowed in the Lake Massabesic Protection Overlay District, in the BC-2 Zoning District, and seeks a variance from Section(s) **6.3.7-A Prohibited Uses in the Lake Massabesic Protection Overlay District – Outdoor Accessory Storage, 7.5.2.A.1 Parking Setbacks, and 6.3.7.C.3 Lot Coverage in the Lake Massabesic Protection Overlay District** of the Zoning Ordinance of the City of Manchester, New Hampshire as per documents submitted through June 23, 2026.

This hearing was postponed to September 10, 2026.

2) ZBA2026-064, 2266 Candia Road

BC-2 Zoning District, Ward 6

Eli Leino, Esq. (Agent) proposes to expand the area of a lot used for a non-conforming use of auto repair in the Lake Massabesic Protection Overlay District by adding 13 parking spaces, resulting in an increase of impervious lot coverage of 55% to 75% where 60% lot coverage is allowed in the Lake Massabesic Protection Overlay District, with parking spaces within 10' of a lot line and without the required parking lot perimeter landscaping of a Type 2 Buffer Yard, in the BC-2 Zoning District, and seek a variance from Section(s) **12.1.4.B Expansion of the Area of Non-Conforming Use on a Lot, 6.3.7.C.3 Lot Coverage in the Lake Massabesic Protection Overlay District, 7.5.2.A.1 Parking Setbacks, 8.1.3.B Type 2 Perimeter Landscaping** of the Zoning Ordinance of the City of Manchester, New Hampshire as per documents submitted through June 23, 2026.

This hearing was postponed to September 10, 2026.

3) ZBA2026-063, 26 Titus Avenue

R-1B Zoning District, Ward 9

Doug MacGuire (Agent) proposes to construct two townhouse dwellings, one with eight units and the other with five units for a total of 13 multifamily dwelling units, on a lot with 49,484 SF where 78,000 SF is required, where both buildings are three stories in height where 2.5 stories is allowed and both buildings have a height of 38' where 35' is allowed, with a dumpster in the street yard, with an 8' high fence screening the dumpster in the street and side yards where 4' is allowed in the front yard and 6' is allowed in the side yard, with a 4' wide landscape area between the driveways where 8' is required, where the parking area for the eight-unit building is within 20' of the building, in the R-1B Zoning District, and seeks a variance from Section(s) **4.3-A.1.C Multifamily Dwellings, 8.1.2 Planned Development Lot Area, 5.3.1.E Townhouse Building Type-Districts Permitted, 5.3.1.E.5.B Maximum Height in Stories, 5.3.1.E.5.C Maximum Height in Feet, 5.6.5.D Dumpster Location, 8.1.4 Townhouse Parking Drive Landscaping, 8.2.4-A Fence Height, 8.7.2.F.2 Parking Location for Planned Developments** of the Zoning Ordinance of the City of Manchester, New Hampshire as per documents submitted through June 25, 2026.

This hearing was postponed to September 10, 2026.

4) ZBA2026-065, 235 Carnegie Street

R-1B Zoning District, Ward 2

Andrew Sullivan, Esq. (Agent) proposes to construct a second-floor addition with a 19.3' front yard setback, with a gabled awning over the stairs with a 16' front yard setback where 20' is required in both instances, and with a 4.8' side yard setback where a minimum 5' side yard setback on one side is required, in the R-1B Zoning District, and seeks a variance from Section(s) **5.3.1.A.3.C Front Yard Setback and 5.3.1.A.3.E Minimum Setback of One Side** of the Zoning Ordinance of the City of Manchester, New Hampshire as per documents submitted through June 24, 2026.

Andy Sullivan, Esq. (Agent) and Gus Lauzier of Triple Oaks Construction, introduced themselves to the Board. Attorney Sullivan explained that the proposal is to raise the second floor of the

house and make it a colonial style. A wrap around porch will be added. Except for the porch, there is no change to the footprint of the foundation. The porch will be an added 6' in depth. The height will add approximately 835-ft. The yard will remain the same. At the front porch area there is currently a stoop and steps. The frontage and lot depth are not proposed to change and are within the regulations. The first-floor layout will remain the same. There are other similar houses to this in the neighborhood. Variances are needed due to the expansion of the structure upwards. An opinion was submitted that this will not devalue neighboring properties. The gain to the public could be through additional taxes, but the proposal is a reasonable use for the family. None of the dimensions of the lot can otherwise be changed. This is a minimal impact on the setbacks and ground level of the home.

Chairman Bob Breault opened the case to the public and asked if there was anyone to speak in favor of or in opposition to the application. There was no public comment at this time.

Chairman Bob Breault asked staff about any correspondence received. Mr. Landry stated that there was not.

Chairman Bob Breault closed the case to the public and brought it back to the Board.

Vice Chairman St. Pierre proposed a findings of fact.

Findings of Fact:

- **Except for the gabled awning, the footprint is not expanded.**
- **The proposed 4.8' side yard setback only requires minimal relief of 0.2'.**
- **The proposal will be an attractive addition.**

Vice Chairman St. Pierre made a motion to **GRANT** the following variance count(s) for case ZBA2026-065, **5.3.1.A.3.C Front Yard Setback and 5.3.1.A.3.E Minimum Setback of One Side.**

Kathryn Beleski seconded the motion.

Yeas: Chairman Bob Breault, Vice Chairman St. Pierre, Kathryn Beleski, Matthew Carnevale, Jr., Nick Taylor

Nays: none

**5) ZBA2026-067, 44 Cricket Lane
R-1A Zoning District, Ward 1**

James Sargeant proposes to construct an 8' high fence in the street yard of a through lot, in the R-1A Zoning District, and seeks a variance from Section(s) **8.2.4-A Fence Height in the Street Yard** of the Zoning Ordinance of the City of Manchester, New Hampshire as per documents submitted through June 26, 2026.

James Sargeant (Owner) introduced himself to the Board. He explained that there is a lot of light reflection that enters his home from headlights. There is an existing 4-ft picket fence, and he would like to extend this to 8-ft. The existing fence is 2-ft+ below the sidewalk grade.

Nick Taylor stated that the lot line is set back from the road and so the fence would not be directly against the sidewalk or street. Mr. Sargeant stated that he would like this to remain. The fence will not be a blockade for his neighbors.

Chairman Bob Breault opened the case to the public and asked if there was anyone to speak in favor of or in opposition to the application. There was no public comment at this time.

Chairman Bob Breault asked staff about any correspondence received. Mr. Landry stated that there was not.

Chairman Bob Breault closed the case to the public and brought it back to the Board.

Vice Chairman St. Pierre proposed a findings of fact.

Findings of Fact:

- **The lot is unique and a through lot.**
- **Campbell St. is a busy road and the headlights shine onto the property.**
- **The fence will be set back from the road.**

Vice Chairman St. Pierre made a motion to **GRANT** the following variance count(s) for case ZBA2026-067, **8.2.4-A Fence Height in the Street Yard.**

Matthew Carnevale, Jr. seconded the motion.

Yeas: Chairman Bob Breault, Vice Chairman St. Pierre, Kathryn Beleski, Matthew Carnevale, Jr., Nick Taylor

Nays: none

**6) ZBA2025-068, 308 Lake Avenue
MX-2 Zoning District, Ward 5**

Matthew Peterson (Agent) proposes to create four new dwelling units by converting commercial space to residential, resulting in a six-unit small multi-family, with modification to an existing parking layout with a driveway width off of Lake Ave. of 37 where 24' is allowed and with a parking space along Lake Ave. within 10' of the front lot line, in the MX-2 Zoning District, and seek a variance from Section(s) **7.4.2.A Driveway Width, and 7.5.2.A Parking Setbacks** of the Zoning Ordinance of the City of Manchester, New Hampshire as per documents submitted through July 1, 2026.

Matthew Peterson, Keach Nordstrom Associates, (Agent) introduced himself to the Board. He explained that this is a mixed-use area with mostly residential and multifamily units. The existing parcel is 9,024 SF and currently a mixed-use building, with a commercial unit below and two residences on the second floor. The building faces mainly Maple Street, and also Lake Avenue. There are currently seven parking spaces behind the building and there is parking along Maple Street. The proposal is for everything along Maple Street to be loamed and seeded, while moving

from seven parking spaces in the back to ten. One variance deals with the width of the driveway. The plans show this as being 39-ft at the property line but the curb tips down to 25-ft. This is to allow for a walkway for the steps and the landscape area. The second variance is for a grass area by Lake Avenue which is currently 7.65-ft in width and the proposal is to extend it to 9.5-ft where 10-ft is required. There will be six units within the building, allowed by-right.

Chairman Bob Breault asked if the curb cuts along Maple Street will be removed. Mr. Peterson stated that the one on Maple Street will be closed and the area restored.

Chairman Bob Breault opened the case to the public and asked if there was anyone to speak in favor of or in opposition to the application. There was no public comment at this time.

Chairman Bob Breault asked staff about any correspondence received. Mr. Landry stated that there was not.

Chairman Bob Breault closed the case to the public and brought it back to the Board.

Vice Chairman St. Pierre asked about an area of concrete in the front of the building. Mr. Peterson stated that he has not thought about that area, but it could be removed.

Vice Chairman St. Pierre proposed a findings of fact.

Findings of Fact:

- **The proposed six-unit small multi-family use is allowed.**
- **The removal of pavement on Maple St. will be an improvement.**
- **The proposed modifications to the existing parking area are minimal.**

Vice Chairman St. Pierre made a motion to **GRANT** the following variance count(s) for case ZBA2026-068, **7.4.2.A Driveway Width, and 7.5.2.A Parking Setbacks.**

Kathryn Beleski seconded the motion.

Yeas: Chairman Bob Breault, Vice Chairman St. Pierre, Kathryn Beleski, Matthew Carnevale, Jr., Nick Taylor

Nays: none

**7) ZBA2026-069, 106 Longwood Avenue
R-1B Zoning District, Ward 5**

Nicholas King (Agent) proposes to construct a one-story, 30' x 30' addition to create a third dwelling unit, resulting in a three-unit apartment house, on a lot with 120' of lot width where 150' is required, with buildable lot area of 12,600 SF where 15,000 SF is required, with 13% transparency on the first and second story primary facades, due to the removal of windows, and with 9% transparency along the secondary façade facing Revere St., where 15% is required in all three instances, and pave a driveway 29' in width where 24' is allowed, in the R-1B Zoning District, and seeks a variance from Section(s) **4.3.A.1.C Multifamily Dwellings, 6.2-B.A**

Minimum Lot Width, 6.2.B.G Minimum Buildable Lot Area, 5.3.1.D.6.A Minimum Transparency Primary and Secondary Façades (3 counts), and 7.4.2.A Driveway Width of the Zoning Ordinance of the City of Manchester, New Hampshire as per documents submitted through July 14, 2026.

Nicholas King (Agent) and Nick Lavertu (Owner) introduced themselves to the Board. The house was built in 1901 and has a number of nonconformities. Almost half of the building is within the front setback. The proposal is to take the two-family building and add an addition off the rear to make it a three-family building. This will be owner occupied and the tenants will be family members. The decks and entry points are being renovated, including redirecting the front stair to add relief to the front setback. The driveway width can be maintained at 24-ft wide in order to eliminate that variance request. The minimum lot width and minimum buildable area are preexisting items. There is no work proposed on the primary structure, only at the rear. The new structure is a single-floor addition that will remain within the setbacks. It will not be contrary to the surrounding neighborhood, as there are other multifamily units nearby.

Mr. Landry noted that the elevations do not accurately represent the windows on the second floor. Chairman Bob Breault stated that the side of the building that faces Longwood Avenue has some windows that have been eliminated. This is part of the issue with the transparency. Mr. King stated that there is not currently a window on the second floor facing Longwood Avenue. Mr. Lavertu stated that the second floor was already approved. There are two doors on the first-floor porch and a window to the right, with another to the right of that one. Nothing is being changed on the existing house. Mr. Landry said the elevation does not show the window on the second floor. Mr. King said the elevation was not the latest. Mr. Landry said there will be no count for the transparency on the second-floor primary façade since they are not removing the window. If a window is added to the addition on the Revere St. façade, then the secondary façade transparency count goes away.

Vice Chairman St. Pierre stated that the staircase access into the parking area is different within the plans submitted. Mr. King stated that the stairs were addressed through a building permit and are actively being worked on. Both stairways point toward the street and are being redirected to Revere Ave.

Chairman Bob Breault opened the case to the public and asked if there was anyone to speak in favor of or in opposition to the application. There was no public comment at this time.

Chairman Bob Breault asked staff about any correspondence received. Mr. Landry stated that there was not.

Chairman Bob Breault closed the case to the public and brought it back to the Board.

Vice Chairman St. Pierre asked if there will be a loss of a parking space on the Longwood Ave. side. Mr. Lavertu stated that there is no currently paved parking on that side.

Nick Taylor proposed a findings of fact.

Findings of Fact:

- **There is a three-family across the street.**
- **The lot is larger than most lots in the neighborhood.**
- **No windows will be removed from the primary façade.**
- **The proposed work will improve the appearance of the property.**

Nick Taylor made a motion to **GRANT** the following variance count(s) for case ZBA2026-069, **4.3.A.1.C Multifamily Dwellings, 6.2-B.A Minimum Lot Width, 6.2.B.G Minimum Buildable Lot Area, 5.3.1.D.6.A Minimum Transparency Primary and Secondary Façades (3 counts), and 7.4.2.A Driveway Width**, with the conditions that one additional window shall be added to the proposed addition on the Revere St. façade and the plan shall be revised to show the correct orientation of the stairs from the side porch and conforming parking spaces of 8.5' width by 18.5' length with a setback of 4' from the lot lines and 2' from structures.

Kathryn Beleski seconded the motion.

Yeas: Chairman Bob Breault, Vice Chairman St. Pierre, Kathryn Beleski, Matthew Carnevale, Jr., Nick Taylor

Nays: none

**8) ZBA2026-070, 15 Windswept Road
R-1A Zoning District, Ward 6**

Stephanie Theriault proposes to install a 6' high fence in the street yard of a corner lot where 4' is allowed, and where the fence will be within the 25' wetlands setback, in the R-1A Zoning District and seeks a variance from Section(s) **8.2.4-A Street Yard Fence Height and 6.4.3.C Wetlands Standard Structural Setback** of the Zoning Ordinance of the City of Manchester, New Hampshire as per documents submitted through July 21, 2026.

Aaron and Stephanie Theriault (Owners) introduced themselves to the Board. They explained that their son has autism and the proposal is to install a 6-ft vinyl fence around the back of the property. It was unclear to them that the rear of the property was a wetland area, and it has been maintained as a lawn. Letters have been signed by the abutters supporting the proposal.

Chairman Bob Breault opened the case to the public and asked if there was anyone to speak in favor of or in opposition to the application. There was no public comment at this time.

Chairman Bob Breault asked staff about any correspondence received. Mr. Landry stated that a letter was received from the Conservation Commission supporting the proposal. An email from the Wetlands Bureau states that they are not opposed to the proposed fence.

Chairman Bob Breault closed the case to the public and brought it back to the Board.

Vice Chairman St. Pierre proposed a findings of fact.

Findings of Fact:

- **The proposed fence has been approved by the Conservation Commission and NH DES Wetlands Bureau.**
- **The property is on a corner lot.**

Vice Chairman St. Pierre made a motion to **GRANT** the following variance count(s) for case ZBA2026-070, **8.2.4-A Street Yard Fence Height and 6.4.3.C Wetlands Standard Structural Setback.**

Kathryn Beleski seconded the motion.

Yeas: Chairman Bob Breault, Vice Chairman St. Pierre, Kathryn Beleski, Matthew Carnevale, Jr., Nick Taylor

Nays: none

**9) ZBA2026-073, 146 Maynard Avenue
R-1B Zoning District, Ward 8**

Emily Van Sickle proposes to construct a 20' x 18' carport in the side yard with a 5' side yard setback where 12.8' is required, in the R-1B Zoning District, and seeks a variance from Section(s) **5.6.2.B Accessory Structure Side Yard Setback** of the Zoning Ordinance of the City of Manchester, New Hampshire as per documents submitted through July 30, 2026.

Emily Van Sickle (Owner) introduced herself to the Board. She explained that the application requested a 4-ft setback, but the paperwork shows a 5-ft setback. Mr. Landry stated that this was scaled to 5' but can be made 4-ft. Ms. Van Sickle stated that the 4-ft would allow for 3-ft between the side stairwell and the proposed left front post of the carport. A letter from the direct abutter expressed no concern with the proposal.

Chairman Bob Breault opened the case to the public and asked if there was anyone to speak in favor of or in opposition to the application. There was no public comment at this time.

Chairman Bob Breault asked staff about any correspondence received. Mr. Landry explained that a letter from the owner of 158 Maynard Avenue expresses no objection to the proposed 20-ftx18-ft carport.

Chairman Bob Breault closed the case to the public and brought it back to the Board.

Nick Taylor proposed a findings of fact.

Findings of Fact:

- **The proposed carport is set back from the street and is nearly in the rear yard.**
- **The proposal is reasonable.**
- **The lot is narrow and limits options for locating a carport.**

Nick Taylor made a motion to **GRANT** the following variance count(s) for case ZBA2026-073,
5.6.2.B Accessory Structure Side Yard Setback for a 4-ft setback.

Matthew Carnevale, Jr. seconded the motion.

Yeas: Chairman Bob Breault, Vice Chairman St. Pierre, Kathryn Beleski, Matthew Carnevale, Jr.,
Nick Taylor

Nays: none

The Board took a ten-minute break.

**10) ZBA2026-071, 102 Talbot Street and Crawford Street TM 609, Lot 46
R-1B Zoning District, Ward 7**

John Cronin, Esq. (Agent) propose to create one new lot by subdividing and consolidating three
existing lots, resulting in four proposed lots, where proposed TM 609, Lot 59 will remain
improved with an existing single-family dwelling with a driveway within 4' of a new lot line,
where proposed TM 609, Lot 60 will have 50.95' of lot width on Talbot St., where 60' is
required, where proposed TM 609, Lot 46 has 0' of frontage on an accepted way, and proposed
TM 609, Lot 46A has 0' of frontage on an accepted way and does not maintain the required lot
width of 60' for a depth of 100', in the R-1B Zoning District, and seek a variance from Section(s)
**7.5.1.A.1 Parking Setbacks for Lot 59, 5.3.1.A.3.A Minimum Lot Width for Lot 60, 5.3.1.A.3.A
Minimum Lot Width and relief from RSA 674:41 for building on an unaccepted way for Lot 46,
and, 5.3.1.A.3.A Minimum Lot Width, 5.3.1.A.3.B Lot Depth and relief from RSA 674:41 for
building on an unaccepted way for Lot 46A** of the Zoning Ordinance of the City of Manchester,
New Hampshire as per documents submitted through July 21, 2026.

Kathryn Beleski recused herself from this item and Scott Godzyk sat as a voting member.

There was discussion regarding when notices were mailed for this hearing. Mr. Landry stated that
they had been mailed ten days before the meeting, though the requirement is at least five days
before a hearing. There was disagreement from members of the public.

John Cronin, Esq. (Agent) introduced himself to the Board. He explained that there is an existing
lot of record adjacent to 102 Talbot Street. This was part of the original subdivision of the land.
Rather than pursue a common law vesting argument for this lot, the applicant is seeking small
dimensional variances. This is proposed to bring new housing to the community. There is 51-ft of
frontage on the lot, and the new ordinance would require 60-ft. Joe Wichert who has been
working on this is shifting the lot line over a bit to create more frontage and space. The lot
exceeds the size of many in the neighborhood. There are lots with similar dimensions as well.
There is a lot to the rear, which is proposed to be subdivided, and which will meet all the
dimensional requirements. Relief is being sought for the frontage of this new lot. The original
intent was to have Candia Road and Norcross connect as part of the Crawford Street lot.
Everyone's parcel should have meaningful access and so the options could include connecting
Crawford as a public highway with classification 5. This would be reviewed by the Mayor and
Aldermen. This would be an expensive road to create, and it would become the burden of the

City to maintain. Abutter comments mention that this application is to connect Crawford Street and the through street. Most seem not to want that. However, the plan proposes two stubs, one at the end of Crawford coming off Candia, approximately 22-ft long to provide adequate access for residents and emergency vehicles, and the other a 27-ft stub from Norcross. These will both be kept as dead-end streets. This proposal addresses many of the abutter concerns regarding a potential through street. A letter was sent on July 15th to DPW asking for comments and the response back was that they would prefer it be connected. The DPW may not understand the oppositions' concerns. He explained that a 674:41 requirement for building on public streets has been included with the application. The two lots proposed to be created will align with Crawford Street, which would allow for this. There will not be any issues with traffic, as the proposal is for single-family residences.

Attorney Cronin stated that, in terms of the five criteria, the prong is if the variance is granted, it will to a marked degree, alter the essential character of the neighborhood. This can be determined by reviewing what is in the neighborhood, in this case, single family residences, and what is proposed, single family homes. Abutters would like for this to remain a treed lot, but the law allows for the applicant to build single family units, which are much in need. Without these variances, there will not be stub roads, but a through street through Crawford. A variance will not be needed for lots on Crawford, if built out to Town specifications. There is no fair and substantial application of the ordinance that would require a 50-ft right of way and connection of Crawford Street. There is also no fair and substantial application of the ordinance to deny the applicant the right to build a home on a full-sized lot that is 9' short of frontage. The applicant meets all of the variance criteria tests. The applicant's preference is not to connect Crawford Street. All of the abutters with passion about conservation and the environment could tear down their houses and dedicate the land to conservation, but this would seem like a crazy idea. The applicant is simply asking for the same consideration and rights to develop their lot.

Matthew Carnevale, Jr. asked if there would be some ownership interest in the midline by other parties if Crawford were to be connected. Attorney Cronin stated that fee ownership is irrelevant to him for this case. When a subdivision plan shows a road, there is an express right to open that for 20 years, after which time a 231 petition can be filed. The Board of Mayor and Aldermen could then consider that the 231 application is a way to open up lots. If they do not, there are still rights by showing the lots on a plan and having access rights by necessity and implication. Both of these are matters for a court through a quiet title action which the applicant could pursue. A road could be constructed if required or desired.

Matthew Carnevale, Jr. asked how many houses could be built on the properties as they exist today. Attorney Cronin stated that there is one lot in the back that could fit a large home with an ADU. The Talbot Street lot could likely at least have an ADU, if not another house. The variance would allow for one additional home on top of what could be obtained without a variance, not counting the ADUs, with the existing road layout.

Vice Chairman St. Pierre asked where the completed road is shown on the tax map. There were intentions to have it built in the 1950s, but it was not built and is a paper street today. If it was never built, it does not exist. As the road has not been completed, the other property owners have rights to the center line. Attorney Cronin stated that this is irrelevant to the determination

at hand, which is seeking access only. The underlying fee is irrelevant to the access. Vice Chairman St. Pierre stated that he believes this is entirely relevant.

Vice Chairman St. Pierre stated that all three of the properties are currently owned by the applicant and so there is access through their own land. The properties are merged in use. Attorney Cronin stated that the law does not allow for merging nonconforming lots.

Vice Chairman St. Pierre stated that the subdivision is reasonable if the road is present. It seems unanimous that, aside from the DPW, no one wants to see the road built. Creating a house and turning a nearby property into an island or peninsular would devalue that property. He is concerned that there is interest of two parcels to the center line which is violated if construction occurs as proposed. A quiet title action is likely needed and could be conditioned by the Board. Attorney Cronin stated that he would then file for the street with the Board of Mayor and Aldermen. It would be more expensive to litigate it than to build the road through.

Chairman Bob Breault opened the case to the public and asked if there was anyone to speak in favor of or in opposition to the application.

Lucinda Hopkins, 10 Cushing Ave, stated that no one has told her anything about the project. She has received information about this big change to the neighborhood in piecemeal. Notices were not received until Monday afternoon. She has not heard anything mentioned about potential water problems.

Deborah Gagnon, 141 Crawford Street, expressed opposition to any proposal that would convert Crawford from a dead end into a through street. Additional pavement could have large impacts on stormwater. Residents should not be expected to bear the practical and financial consequences of a development that primarily benefits the property owners. The other residents will suffer a hardship. She asked that a detailed stormwater management and drainage plan address existing conditions and protections for abutters, including granite curbing.

Daniel Sullivan, 95 Crawford Street, stated that the dead-end street is safe for his children to play on. He opposes Lots 609-59 and 46 due to the fact that these will impact each dead end of Crawford Street. The applicant could donate 10-ft of their land from Talbot Street without infringing on others' rights.

Ed Kaminski, 222 Norcross Street and on behalf of Valerie Patnaude, read a letter from her noting that the property owner rents the current property on the lot. Concerns were expressed regarding reduced lot widths, unaccepted way access, RSA 674:41, tight parking, and driveway setbacks. Any Board member who shares a professional or personal relationship with the property owner, specifically Kathryn Beleski, recused themselves from any discussion or voting on this matter. The primary concerns include neighborhood density and character, creation of an undersized parcel where 60' is required, and that building on multiple cramped lots will impact the established layout and open space feel. The property adjacently to this is owned by the legal representative for the applicant which further concentrates local control over these parcels. The request to allow for an existing driveway on Lot 59 to stay within 4-ft of a new line impacts visual buffers. The close proximity will impact peacefulness and enjoyment of surrounding properties.

Relying on unaccepted ways, Crawford Street, for building access on Lots 46 and 46-A raises concerns about adequate municipal services and stormwater runoff. Granting of variances could lead to increased visual strain in the neighborhood, potentially negatively impacting the values of existing homes. The request is to continue this hearing to allow for time to contact an appraiser and a professional opinion on how the variances could impact property values.

Vin DeAngelo, 13 Moses St., stated that the variance would be contrary to the public interest, as seen based on the number of people present at the meeting to speak against this. Regarding the criterion that values of surrounding properties will not be diminished, seeing additional houses in an area that is currently open space would likely diminish values. He would be interested in hearing more about a quiet title, as he is an abutter to the paper road.

Mark Chagnon, 22 Crawford Street, stated that he does not see how this will not impact the value of his home and he is opposed.

Jennifer Durant, 232 Norcross Street, stated that her property abuts the wooded area that is part of the proposed development and her backyard would be one of those most directly impacted. She is not opposed to responsible development but is concerned regarding the potential impact on her property and the overall neighborhood. The woods have allowed for a buffer and view for her current home. This would be a significant change to the enjoyment of her property. She asked if additional modifications could be made to the plans.

Raymond Gauthier, 53 Crawford Street, stated that there was at least one prior attempt to develop this land. He believes the road was not previously connected due to physical issues.

Valeria Solorzano, 48 Crawford Street, expressed opposition to making Crawford Street a through street. Her young cousin asked that the trees on the lot be protected to help the planet and City, while allowing children to play in the area.

LeeAnn Juza, 222 Norcross Street, expressed opposition to the proposal. The proposed homes being so close to existing homes raises concerns regarding privacy, light, views, and neighborhood character. She expressed concern regarding congestion with water and sewer pipes, and potential foundation shifts due to construction. There could also be rodent problems when the trees are removed from the site. She asked how tall the new buildings will be.

Rick Hopkins, 10 Cushing Ave., stated that he has been unable to use his basement due to constant water. There could be geologic issues in the area which could make these problems worse.

Chairman Bob Breault asked staff about any correspondence received. Mr. Landry stated that 20 emails were received, some upwards of nine pages, and forwarded to the Board.

Chairman Bob Breault asked the applicant to respond to any questions or comments. Attorney Cronin stated that he believes there appears to have been some technical issues in terms of notice for the hearing. He stated that appearance at a public hearing is a waiver of any defects of notice. He heard comments regarding the through road on Crawford which the applicant would

prefer not to do. There are a number of small lots in the general area. There is a law that post development runoff cannot exceed predevelopment runoff as a way to protect abutters. Joe Wichert said that some of the abutters mentioned the drainage issue. The general direction of the water flow on the site is west to east. Water concerns should not be an issue for those upstream of this property. A response sought from DPW was originally that there was no comment based on additional information needed but that changed this morning to request a connection of the road. The proposed lot size is adequate, and the applicant is trying to resolve any frontage issues for the neighborhood.

Chairman Bob Breault asked if the units will seek within the buildable area of the lots. Mr. Wichert stated that 2.5 stories and 35' are allowed in this District and the intention is to remain within this.

Chairman Bob Breault closed the case to the public and brought it back to the Board.

Vice Chairman St. Pierre expressed concern that some of the abutting lots have rights to the center line. He asked why quiet title is not being sought by the applicant to the center line. Attorney Cronin stated that this could be considered. Vice Chairman St. Pierre stated that he would like to find a reasonable way to get access to the two lots. Attorney Cronin stated that a quiet title process could take years and may not be necessary. The applicant cannot violate others' property rights. The applicant will comply with all of the requirements to get a building permit.

Chairman Breault asked the width of the right of way. Mr. Wichert stated that the plan for Crawford and Talbot specifies 49.75-ft. The applicant can try to work out something with DPW. Attorney Cronin asked that the Board vote separately on the Talbot issue and that the applicant would agree to consider a condition that a driveway be maintained on their half of the 50-ft right of way. To the extent this is not allowed by Fire and/or DPW, the applicant could come back to the Board.

Chairman Breault asked about how RSA 674 applies to this. Attorney Cronin stated that the language is that it aligns or corresponds with a City street and this proposal does that. Vice Chairman St. Pierre stated that he believes this complies if it goes to the center line and then directly into the lot.

Vice Chairman St. Pierre proposed a findings of fact.

Findings of Fact:

- **If Crawford St. was connected, Lots 46 and 46A would conform to the Zoning Ordinance.**
- **The proposed lots are generally larger than other lots in the neighborhood.**
- **The original subdivision plan shows Crawford St. continuing along Lot 46.**
- **DPW notes that the undeveloped portion of Crawford St. was never laid out as a public way.**
- **The property owners have a reasonable right to access their property.**
- **There is a home on Moses St. that is not on an accepted way.**
- **Infill development is ordinary.**

Vice Chairman St. Pierre made a motion to **GRANT** the following variance count(s) for case ZBA2026-071, **7.5.1.A.1 Parking Setbacks for Lot 59, 5.3.1.A.3.A Minimum Lot Width for Lot 60, 5.3.1.A.3.A Minimum Lot Width and relief from RSA 674:41 for building on an unaccepted way for Lot 46, and, 5.3.1.A.3.A Minimum Lot Width, 5.3.1.A.3.B Lot Depth and relief from RSA 674:41 for building on an unaccepted way for Lot 46A, with the condition that the driveway stubs be located within the one half of the right-of-way adjacent to Lot 46.**

Nick Taylor seconded the motion.

Yeas: Chairman Bob Breault, Vice Chairman St. Pierre, Matthew Carnevale, Jr., Nick Taylor, and Scott Godzyk

Nays: none

Kathryn Beleski retook her seat.

III. BUSINESS MEETING:

A. Requests for Rehearing

1) ZBA2026-060, Wellington Road, Tax Map 860, Lot 30 R-1A and LMPOD Zoning District, Ward 2

John Bisson, Esq. and Michael and Katherine Davey requests a rehearing of variance ZBA2026-060, granted on July 9, 2026, to subdivide the parcel into 34 lots, where six of the lots (TM 860, Lots 30J, 30K, 30L, 30P, 30Q and 30R) are located on cul-de-sacs and have lot frontage ranging from 70.59' to 71.52' where 100' is required, in the R-1A Zoning District and Lake Massabesic Protection Overlay District (LMPOD) and received a variance from Section(s) **5.3.1.A.3.A Minimum Lot Width (6 counts)** of the Zoning Ordinance of the City of Manchester, New Hampshire, as per documents submitted through August 4, 2026.

Chairman Bob Breault recused himself from this item and Vice Chairman St. Pierre sat as Acting Chair.

Nick Taylor stated that he does not believe new information was submitted that would cause the Board to revisit this decision. The Board had significant deliberation regarding the criteria and Findings of Fact.

Matthew Carnevale, Jr. stated that he believes the decision made was in error, compounding the original sin of the first decision made on this item. He will vote in favor of a rehearing because the original underlying case was decided on in error and this is a compounding of that.

Kathryn Beleski stated that the applicant has done their best with the application and there is no reason for a rehearing at this time. Scott Godzyk agreed that the plans were greatly improved at the last hearing and there was nothing new submitted to lead to a rehearing. Vice Chairman St. Pierre agreed.

Findings of Fact:

- **The board had significant deliberation on both facts and variance criteria.**
- **No new material was provided.**

Nick Taylor made a motion to **DENY** the request for a rehearing for case ZBA2026-060, **5.3.1.A.3.A Minimum Lot Width (6 counts).**

Kathryn Beleski seconded the motion.

Yeas: Vice Chairman St. Pierre, Kathryn Beleski, Nick Taylor, and Scott Godzyk

Nays: Matthew Carnevale, Jr.

Chairman Bob Breault retook his seat.

B. Review and approval of the ZBA Minutes of July 9, 2026.

Matthew Carnevale, Jr. made a motion to **ACCEPT** the minutes of July 9, 2026, as amended.

Kathryn Beleski seconded the motion.

Yeas: Chairman Bob Breault, Vice Chairman St. Pierre, Kathryn Beleski, Matthew Carnevale, Jr., Nick Taylor

Nays: None

C. Any other business items from the ZBA staff or Board Members.

Matthew Carnevale, Jr. made a motion that the Board thank Nick Taylor for his service, as this is his final meeting.

Kathryn Beleski seconded the motion.

Yeas: Chairman Bob Breault, Vice Chairman St. Pierre, Kathryn Beleski, Matthew Carnevale, Jr., Nick Taylor

Nays: none

Mr. Landry thanked Nick Taylor for service on the board, and wished him well.

IV. ADJOURNMENT:

Kathryn Beleski made a motion to **ADJOURN** the meeting of August 13, 2026.

Matthew Carnevale, Jr. seconded the motion.

680 Yeas: Chairman Bob Breault, Vice Chairman St. Pierre, Kathryn Beleski, Matthew Carnevale, Jr.,
681 Nick Taylor

682

683 Nays: None

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685 Upon a 5/0 vote the meeting of August 13, 2026 was ADJOURNED at 8:34 pm

686

687 **V. Contact Information**

688

689 Address: One City Hall Plaza, Manchester, New Hampshire 03101

690 Phone: (603) 624-6450

691 Fax: (603) 624-6529

692 Email the Planning and Community Development Department at pcd@manchesternh.gov

693 Visit the City of Manchester website at <http://www.manchesternh.gov>

694

695 *Respectfully submitted, Kristan Patenaude, Recording Secretary and Andre R. Gagnon,*
696 *Administrative Assistant III*